

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

DANIEL ZIVNEY,

Petitioner

VS.

CAROLYN HO,

Respondent

) Case Number: FDI-25-802197

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: CHILD CUSTODY, VISITATION (PARENTING TIME)

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) Daniel Zivney (Father) and Respondent Carolyn Ho (Mother) have one minor child together, Tai (DOB 3/9/2016, age 10).
- 2) On for hearing is Father's ex parte request for joint legal custody and sole physical custody of Tai with parenting time for Mother from Friday school pick up to Sunday at 7PM until she shows, after taking parenting classes and enrolling in therapy, that she is capable of caring for Tai for extended periods of time. Mother opposes this request, stating the parties have followed a 2-2-3 parenting time schedule for the last 1.5 years, that despite some issues she has had with Tai, she is fully capable of caring for him, and that the fact that Father thinks she should have Tai for an extended period of time (all weekends) shows he does not think Tai is at risk while in her care. The Court has reviewed and considered all of the parties' submissions.
- 3) The Court denied Father's ex parte request pending a hearing on the Court's regular calendar. The matter was inadvertently set for 8/6/2026 (the Court's Tuesday/Thursday law and motion

calendar) instead of the Monday readiness calendar, so the parties have not attended orientation and mandatory mediation.

### **B. Findings and Orders**

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) The parties are ordered to attend orientation and mandatory mediation with Family Court Services (FCS).
- 3) Orientation: **On any Monday in August (8/10, 8/17 or 8/24)**, the parties shall attend orientation via Zoom video **from 10:45AM to 12PM** by texting their name and email address to FCS at (415) 238-3623 before 10AM on the Monday they choose to attend orientation. The parties are not required to attend orientation on the same Monday. Orientation is designed to provide information to the parties on how to work together towards reaching an agreement regarding custody and parenting time.
- 4) Mediation: The parties shall attend mediation via Zoom video with FCS mediator Jeysa Martinez on **9/15/2026 at 1:30PM**. If that date/time does not work for the parties, they shall call FCS immediately (on or before 8/7/2026) at (415) 238-3623 to reschedule the mediation.
- 5) The matter is continued to **10/6/2026 at 9AM in Department 404**. At least 10 days before the 10/6/2026 hearing, the parties may file brief update declarations informing the Court of any new developments and any modifications to their custody and parenting time-related requests.
- 6) Pending the 10/6/2026 hearing, the Court finds it is in Tai's best interest for the parties to temporarily share joint legal and physical custody of Tai on a 2-2-3 parenting time schedule. The parties may agree, in writing, to a different schedule at any time, including before and after mediation.
- 7) Father's attorney shall prepare the Findings and Order After Hearing.
- 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule

1 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the  
2 proposed order after hearing directly to the court. Failure to submit the order after hearing within  
3 10 days may allow the other party to prepare a proposed order and submit it to the court in  
4 accordance with CA Rules of Court, Rule 5.125(d).  
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